IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH BENCH

COURT NO.1

(*through hybrid mode*)

ITEM NO.12

CP (CAA) No. 16/Chd/Hry/2023

(2nd Motion)

IN THE MATTER OF:-

Star Wire (India) Electricity Pvt. Ltd & Ors. **...Transferor Companies**

And

Star Wire (India) Laboratories Pvt. Ltd. **…Transferee Company**

Under Section: 230-232, CA 2013

Order delivered on 22.12.2023

CORAM:

SH. L. N. GUPTA
MEMBER (TECHNICAL)

SH. HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

PRESENT:

For the Petitioners : Mr. Kartikeya Goel, Advocate
For the Income Tax Department : Mr. Yogesh Putney, Senior Standing Counsel

ORDER

A report of the Income Tax Department with respect to Transferor Company No.7 has been filed vide diary No.01223/6 dated 22.09.2023. The same is taken on record. A report of RD has been filed vide diary No.01966/5 dated 10.10.2023. The same is taken on record. A date is requested by the learned counsel for the Petitioners to file their response to RD and Income Tax reports. Let the same be done within two weeks with a copy in advance to the counsel opposite.

Despite repeated calls no one appeared on behalf of the RD/ROC. Let the RD/ROC ensure that on the next date of hearing, they will be represented to explain their observation. In the meantime, the counsel for the Petitioner-Companies is directed to collect the notice from the Registry to inform the next date of hearing along

with this order to RD/ROC through email and place that copy of email with affidavit on record so that effective proceedings can take place on the next date of hearing. List the matter on 09.02.2024.

Sd/-
(L.N. GUPTA)
MEMBER (TECHNICAL)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

December 22, 2023
PDP